

United States Rapid Action and Preparedness Act

US-RAPA · VERSION 8.0 · WORKING DRAFT

A BILL — To establish a national framework for rapid action and preparedness, provide mechanisms for citizen-initiated safeguards, strengthen continuity of government, and promote democratic stability and accountability in times of crisis.

BE IT ENACTED BY THE SENATE AND HOUSE OF REPRESENTATIVES OF THE UNITED STATES OF AMERICA IN CONGRESS ASSEMBLED,

that this Act may be cited as the “United States Rapid Action and Preparedness Act” or “US-RAPA.”

Version 8.0 — Change Summary

Working Draft. Carries forward all of Version 7 unchanged and adds four targeted provisions. Where Version 7 already addressed a concern, only the genuinely new element was added, to avoid duplication.

- 1. New §3(17) and new §6A — Synthetic and AI-Generated Election Content.** Adds a “synthetic media” definition and a new section on AI-generated and deepfake election content: a disclosure requirement, a prohibition on fraudulent impersonation, and explicit First Amendment safeguards (satire, parody, opinion, news, and art remain protected; no takedowns or prior restraint).
- 2. New §4(g) — Petition Integrity.** Adds explicit penalties for knowingly fraudulent or bad-faith petitions, while protecting good-faith petitioners and honest errors. Complements the existing perjury attestation in §4(b).
- 3. New §11(e) — Breach Notification and Non-Sale of Data.** Version 7’s §11 already provides comprehensive portal data protection (encryption, FISMA/FedRAMP, segmented storage, retention and deletion, PCLOB oversight, annual audits); v8 adds only the two missing elements — a 72-hour breach-notification requirement and an express ban on selling or renting petitioner and voter data.
- 4. New §15(d) — Whistleblower Protection.** Expands the one-line anti-retaliation provision in §15(b) into a full framework: protected disclosures, protected channels, anti-retaliation remedies, and confidential or anonymous reporting.

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Section 1. Short Title

This Act may be cited as the “United States Rapid Action and Preparedness Act” or “US-RAPA.”

Section 2. Findings and Purpose

(a) Congressional Findings.— Congress makes the following findings:

1. Growing Risks to the Nation. The United States faces increasing threats from natural disasters, pandemics, cyber-attacks, disinformation campaigns, and attempts to undermine democratic institutions. These evolving challenges require rapid and lawful responses that respect constitutional principles.
2. Need for Swift and Democratic Action. Existing emergency frameworks often rely on executive declarations or fragmented state responses. There is a compelling need for a framework that can be activated promptly by government officials and by the people when credible threats arise, ensuring balance between efficiency and democratic oversight.
3. Public Trust and Accountability. In recent years, confidence in public institutions has been eroded by perceived abuses of power, misinformation, and lack of transparency. A mechanism that empowers citizens to petition for safeguards and review leaders’ fitness to serve can strengthen trust in government.
4. Continuity of Government. Disruptions to critical infrastructure, pandemics, or attacks on elected officials could compromise continuity of government operations. Preparedness plans and orderly succession are essential to preserve democratic stability.
5. Federalism and Cooperation. States, territories, and municipalities are frontline responders in emergencies. Coordinated guidance, training, and resources can help state, territorial, and local governments integrate preparedness measures while respecting their sovereignty.

(b) Purpose.— The purposes of this Act are to:

1. Establish a national framework enabling rapid, lawful, and effective responses to crises while preserving democratic principles and civil liberties.
2. Provide mechanisms for citizens to petition for activation of emergency safeguards and to participate in the removal of corrupt or incapacitated leaders.
3. Create a balanced US-RAPA National Council composed of government officials and civilian experts to oversee activation decisions, review conduct of public officials, and recommend early elections when necessary.
4. Ensure continuity of government and election stability through early voting mechanisms and removal procedures that adhere to constitutional requirements.
5. Promote state, territorial, and local preparedness by providing guidance, resources, and pilot programs to test and refine the framework.
6. Guarantee transparency in all actions taken under this Act through a secure digital portal that allows public review of petitions, council findings, and early voting results.

Section 3. Definitions

In this Act:

1. “Activation” means invocation of the US-RAPA framework in response to a credible threat or emergency, allowing procedures outlined in this Act to be implemented.
2. “Citizen” means a person who is a citizen of the United States and is at least 18 years of age. Only citizens may initiate petitions under the People’s Activation mechanism.
3. “Legal Resident Supporters” means lawful permanent residents (Green Card holders) and work-visa residents who lawfully reside and pay taxes in the United States. Legal Resident Supporters may sign petitions to express solidarity or provide feedback, but their signatures do not count toward any petition threshold or trigger activation.
4. “Council” or “US-RAPA National Council” means the national council established in section 5 of this Act.
5. “Early Voting Mechanism” means a process by which voters may cast ballots of confidence or no confidence prior to a scheduled election when credible evidence arises concerning a candidate’s or official’s fitness to serve.
6. “Emergency” means a situation posing an imminent threat to public health, safety, security, or democratic institutions, including natural disasters, pandemics, cyber-attacks, election interference, or attempts to unlawfully consolidate power.
7. “Petition Threshold” means the minimum number of verified petition signatures required to initiate People’s Activation or to commence a removal or referendum process. Unless otherwise specified, the threshold shall be three percent (3 %) of the voting-age population of the United States as determined by the most recent decennial census. To ensure broad national support, signatures must be obtained from at least twenty-five (25) States, with no less than one-half of one percent (0.5 %) of the voting-age population in each of those States.
8. “Qualified Elector” means a citizen of the United States who is registered to vote in federal elections under applicable state law.
9. “Removal” refers to the process by which an elected or appointed federal official, including a Supreme Court Justice, is lawfully removed

from office through procedures outlined in this Act.

10. “Secure Digital Portal” means the online system developed pursuant to section 11 to authenticate users, collect petitions, publish council findings, and facilitate early voting.

11. “Credible Evidence” means information supported by verifiable facts and corroborated by an independent investigation demonstrating a substantial likelihood of wrongdoing, emergency, or threat identified in this Act.

12. “Disinformation Campaign” means a coordinated effort to disseminate false or misleading information—through any medium, domestic or foreign—intended to influence public opinion, suppress voter participation, or undermine confidence in democratic institutions.

13. “Unlawful Power Consolidation” means actions by public officials or entities to seize or retain authority not granted by law, including circumventing constitutional checks and balances, manipulating succession processes, or obstructing legitimate electoral or judicial processes.

14. “Democratic Stability” means the resilience and continuity of constitutional government, including the holding of free and fair elections, the peaceful transfer of power, the separation of powers among branches, the independence of the judiciary, and the protection of fundamental rights and civil liberties.

15. “Public Health” means the health, safety, and well-being of the population, as assessed by relevant federal agencies such as the Department of Health and Human Services and the Centers for Disease Control and Prevention, including measures to prevent, detect, and respond to disease outbreaks, pandemics, and other health emergencies.

16. “Security” (also referred to as “National Security”) means the protection of the United States, its people, institutions, and infrastructure from threats including armed attack, terrorism, cyber-attacks, espionage, and other hostile activities, as determined in coordination with the Department of Defense, the Department of Homeland Security, and the intelligence community.

17. "Synthetic Media" means any image, audio, video, or other content that has been generated or materially altered by artificial intelligence, machine learning, or comparable technology such that it falsely appears to be an authentic record of a real person’s words or conduct, including content commonly known as "deepfakes."

Section 4. Activation Mechanisms

The US-RAPA framework may be activated through any of the three mechanisms described below. Activation shall be limited to the scope and duration necessary to address the precipitating emergency. During any activation, actions taken pursuant to this Act shall be confined to mitigating or responding to the declared emergency—such as coordinating emergency response, allocating resources, ensuring continuity of government, and protecting public safety. The Council, federal agencies, and state partners shall not use an activation to enact policies unrelated to the emergency, to curtail constitutionally protected rights, to suppress lawful political activity, or to target specific individuals or groups.

(a) Government Activation.—

1. Executive Activation. The President of the United States or the Vice President, upon determining that an emergency poses a substantial threat to national security, public health, or democratic stability, may declare US-RAPA activation. The declaration shall state the reasons for activation and specify the anticipated scope and duration.

2. Legislative Activation. A majority vote in either the House of Representatives or the Senate may trigger activation. The resolution shall include findings of fact justifying activation and may recommend specific actions under this Act.

3. Judicial Activation. A majority of the Supreme Court may, upon petition or sua sponte, activate US-RAPA when judicial review reveals imminent threats to constitutional order or electoral integrity.

4. Gubernatorial Activation. A governor may activate US-RAPA in response to a state emergency with significant federal implications, provided that at least two other governors concur. The President may suspend or modify a gubernatorial activation if it conflicts with federal interests.

(b) People’s Activation.—

1. Eligibility. Only citizens of the United States aged 18 years or older may initiate a petition for activation. Legal Resident Supporters may co-sign petitions in solidarity, but their signatures are not counted toward the petition threshold.

2. Petition Requirements. A petition must be filed via the secure digital portal established under section 11 and shall state the nature of the emergency; include sworn statements under penalty of perjury from at least ten (10) petition organizers attesting to the truth of the allegations; provide supporting documentation and evidence sufficient to demonstrate credible evidence as defined in section 3(11); and specify the relief sought. To qualify for consideration, the petition must gather verified signatures equalling at least the petition threshold described in section 3(7), distributed across the minimum number of States specified therein. Petitions lacking adequate evidence or failing to meet the distribution requirement shall be rejected by the Council with a written explanation published on the portal.

3. Council Review. Upon receipt of a valid petition, the Council shall conduct a preliminary investigation within 30 days to determine whether the alleged emergency constitutes a threat under this Act. The Council may subpoena documents and testimony, consult with relevant experts, and hold hearings. If the Council finds credible evidence that an emergency exists, it shall vote on activation. A two-thirds (2/3) vote of the Council is required to recommend activation. The Council shall issue a public report summarizing its findings, evidence reviewed, and reasons for its recommendation.

4. Confirmation. If the Council recommends activation, the House of Representatives or the Supreme Court shall review the recommendation within fourteen (14) days and either confirm or deny the activation. If neither body acts within that period, the activation shall take effect provisionally for forty-five (45) days, after which it shall expire unless Congress authorizes an extension by joint resolution. During provisional activation, the Council's actions shall be limited to emergency response as described in subsection (f).

(c) National Council Activation.— The Council may initiate activation on its own motion when credible evidence of an emergency is discovered through investigations, advisory reports, or information from intelligence agencies. A two-thirds vote of the Council is required for activation. As with people's activation, the House of Representatives or the Supreme Court must confirm or deny the activation within fourteen (14) days; failure to act results in a provisional activation for forty-five (45) days subject to the same limitations and expiration terms.

(d) Rapid Activation in Major Disasters.—

1. Triggering Criteria. To address large-scale disasters requiring immediate response, the Council may, upon a two-thirds (2/3) vote, provisionally activate US-RAPA for up to seven (7) days when one of the following conditions is met: -

(A) The President issues a major disaster declaration under the Robert T. Stafford Disaster Relief and Emergency Assistance Act for an event that affects at least five (5) States or more than one percent (1 %) of the national population; -

(B) A single incident—or multiple incidents occurring within a twelve-month period—that cumulatively results in the death, injury, or displacement of more than one percent (1 %) of the U.S. population or causes mass displacement in five (5) or more States; -

(C) There is clear and immediate evidence of foreign interference or a cyber-attack that compromises national infrastructure or electoral processes, confirmed by the Cybersecurity and Infrastructure Security Agency and the Director of National Intelligence.

2. Scope and Limitations. Rapid activation under this subsection is limited to coordination of emergency response, continuity of government, and protection of life and critical infrastructure. It may not be used to enact policies unrelated to the triggering event or to infringe upon constitutional rights.

3. Notice and Confirmation. The Council shall immediately transmit notice of provisional activation and supporting documentation to the House of Representatives and the Supreme Court of the United States. Provisional activation shall terminate unless confirmed by a majority vote of the House or a majority of the Supreme Court within the seven (7)-day period. If confirmed, the activation shall continue subject to the duration and renewal provisions of subsection (f).

4. Public Notice. The Council shall provide public notice of provisional activation through the secure digital portal and shall publish a summary of actions taken, resources allocated, and anticipated needs. Upon termination of provisional activation, the Council shall issue a public report detailing its actions and outcomes.

(e) Annual Activation Limits and Reporting.—

1. Cumulative Activation Limit. The total number of days during which US-RAPA is activated under any mechanism in a single calendar year shall not exceed ninety (90) days unless Congress authorizes an extension by joint resolution. For purposes of this calculation, overlapping activations shall be counted concurrently.

2. Post-Activation Report. Within fourteen (14) days after the termination of each activation—whether provisional or confirmed—the Council shall prepare and submit a report to the President, Congress, and the public via the secure portal. The report shall include:

- A description of the emergency and justification for activation;

- Actions taken, resources expended, and agencies involved;

- Impacts on civil liberties and any complaints received;

- An evaluation of the effectiveness of the response and recommendations for improvement. The Council shall also transmit any independent investigator's report and all evidence considered, subject to redaction of classified or sensitive information.

3. Consequences for Non-Compliance. If the Council fails to submit the report required by paragraph (2) within the prescribed timeframe, the Council shall be prohibited from initiating any new activation under this Act until the report is filed. Persistent failure to report shall constitute misconduct subject to investigation and potential removal of Council members by the Civilian Review Board established under section 5(c).

(f) Stalemate Resolution and Default Timelines.—

1. People's and Council Activations. When a People's Activation petition is validated and the Council recommends activation, or when the Council votes to activate pursuant to subsection (c), the House of Representatives or the Supreme Court shall review and either confirm or deny the activation within fourteen (14) days of receipt. If neither body acts within that timeframe, the Council's decision shall take effect provisionally for a period of forty-five (45) days, after which the activation shall terminate unless Congress, by joint resolution, authorizes continuation.

2. Effect of Non-Action on Referrals for Early Voting or Removal. If the Council recommends an early voting process or removal of an official and the House or the Supreme Court fails to act within thirty (30) days, the Council's recommendation shall proceed to the electorate subject to the supermajority and turnout thresholds of section 6(d). Judicial review remains available pursuant to section 5(b)(6).

3. Extensions. In extraordinary circumstances, the Council may petition Congress for a one-time extension of up to fifteen (15) days for deliberations under this subsection. Congress may grant the extension by majority vote of both chambers.

(g) Petition Integrity; Penalties for Fraudulent or Bad-Faith Petitions.—

1. Prohibited Conduct. No person shall knowingly: (A) submit, or cause to be submitted, false, forged, or fabricated signatures or identities in a petition under this Act; (B) impersonate a Citizen, Qualified Elector, or Legal Resident Supporter; (C) organize or fund a petition campaign that relies on signatures the person knows to be fraudulent; or (D) file a petition in bad faith for the primary purpose of harassing a covered official rather than addressing genuine grounds under this Act.
2. Penalties. Knowing violations of paragraph (1) shall be subject to civil penalties, and where the conduct is willful and substantial, to criminal penalties consistent with existing federal law governing election fraud and false statements. These penalties are in addition to the penalty of perjury attaching to the sworn statements required under subsection (b).
3. Protection of Good-Faith Petitioners. No penalty shall attach to a petitioner who acts in good faith, to a signature later found invalid through honest error, or to a petition that simply fails to meet the threshold or distribution requirements of section 3(7). The right to petition is protected, and this subsection reaches only knowing fraud and bad-faith abuse.
4. No Collective Penalty. Fraud by an individual signer or organizer shall not, by itself, subject other good-faith participants in the same petition to penalty, nor invalidate otherwise valid signatures, unless the petition effort as a whole was conducted in knowing bad faith.

Section 5. US-RAPA National Council

(a) Establishment and Composition.—

1. Creation. There is established an independent body known as the US-RAPA National Council (hereafter in this Act referred to as the “Council”).
2. Membership. The Council shall consist of fourteen (14) members appointed as follows:
- Three (3) Members of the House of Representatives, appointed jointly by the Speaker of the House and the Minority Leader, ensuring bipartisan representation.
 - Three (3) Senators, appointed jointly by the Majority Leader and the Minority Leader of the Senate, ensuring bipartisan representation.
 - Three (3) Civilian Experts, selected by a committee composed of the Chief Justice of the United States, the Archivist of the United States, and the Director of the Congressional Research Service. Candidates shall possess expertise in law, social sciences, mental health, or public safety.
 - Three (3) Civilian Professionals, selected by a committee composed of the Chair of the Joint Chiefs of Staff, the Administrator of the Federal Emergency Management Agency, and the Librarian of Congress. Candidates shall possess experience in military affairs, emergency management, or constitutional law.
 - Two (2) Citizen Members, randomly selected from a national pool of citizens meeting minimum qualifications (including a demonstrated understanding of civic processes and no felony convictions). The selection process shall be administered by the Administrative Office of the U.S. Courts using a random selection algorithm akin to jury selection. To ensure a representative cross-section of the population, the Administrative Office shall design the selection algorithm to achieve geographic, gender, and socioeconomic diversity based on census data, and may employ stratified random sampling or other methods to meet these diversity goals. Citizen Members shall not be registered lobbyists, current federal employees, or elected officials, and shall be compensated for their service.
3. Term of Service. Members shall serve staggered four-year terms and may be reappointed for one additional term. Vacancies shall be filled by the appointing authority for the remainder of the unexpired term.
4. Chair and Vice-Chair. At the first meeting of each year, the Council shall elect one of its members as Chair and one as Vice-Chair. The Chair shall preside over meetings; the Vice-Chair shall act in the absence of the Chair.

(b) Powers and Duties.—

1. Activation Authority. As provided in section 4(c), the Council may activate US-RAPA by a two-thirds vote.
2. Investigation and Review. The Council shall have authority to receive complaints, conduct investigations, subpoena witnesses and documents, and review allegations against elected or appointed federal officials, including judges, concerning misconduct, incapacity, or threats to democratic integrity.
3. Recommendations for Early Voting. Upon finding credible evidence that a candidate or official has engaged in misconduct, corruption, criminal activity, or is otherwise unfit to serve, the Council may recommend an early voting process. The recommendation shall include findings of fact and proposed questions for the ballot.
4. Advisory Reports. The Council may issue advisory opinions on emergency preparedness, continuity of government, and democratic resilience. Reports shall be transmitted to the President, Congress, governors, and published via the secure portal.
5. Transparency Requirements. All Council meetings and deliberations shall be recorded and, except where classified information is discussed, made available to the public within 14 days through the secure portal.
6. Judicial Review of Council Actions. Any individual aggrieved by a Council action— including activation, investigation outcomes, or recommendations—may petition the United States Court of Appeals for the District of Columbia Circuit for review within thirty (30) days. The court shall uphold Council actions unless they are arbitrary, capricious, an abuse of discretion, or contrary to the Constitution or laws of the United States. The Council shall stay implementation of any challenged action until the court issues a decision.

(c) Accountability and Removal.—

1. **Civilian Review Board.** An independent Civilian Review Board (CRB) is established within the Government Accountability Office, composed of nine members appointed by the Comptroller General for staggered three-year terms. Members shall have expertise in ethics, public administration, or constitutional law.
2. **Complaints Against Council Members.** Any person may submit a complaint against a Council member alleging abuse of power, corruption, bias, or dereliction of duty. Complaints shall be filed with the CRB via the secure portal.
3. **Investigation and Disposition.** Upon receiving a complaint, the CRB shall investigate within 30 days. If the CRB finds a complaint credible, it may recommend suspension or removal of the Council member. A recommendation for removal shall be transmitted to the appointing authority, who must either remove the member or provide a public explanation for refusing to do so.
4. **Interim Suspension.** The CRB may suspend a Council member for up to 90 days pending investigation when the alleged conduct poses an immediate threat to the integrity of the Council.

(d) **Confidentiality and Due Process in Investigations.—**

1. **Confidential Investigations.** Complaints and investigations conducted by the Council or the Civilian Review Board shall remain confidential until a preliminary determination of probable cause is made. Names of accused officials, witnesses, and complainants shall be withheld from public disclosure unless and until charges are formally filed or early voting is recommended.
2. **Protection Against Defamation.** Council members, staff, and investigators shall not disclose allegations, evidence, or deliberations outside authorized channels. Unauthorized disclosure of confidential information shall constitute misconduct punishable by removal and, where applicable, civil penalties.
3. **Right to Respond.** Officials subject to investigation shall be afforded notice of the allegations, an opportunity to respond in writing, and, if the Council recommends early voting or removal, the right to present a defense in a public hearing prior to the ballot. The Council shall provide counsel to assist officials who cannot afford representation.
4. **Presumption of Innocence.** In all proceedings under this Act, officials shall be presumed fit to serve until a supermajority of voters determines otherwise pursuant to section 6(d). Public communications by the Council or government agencies shall emphasize that investigations and petitions are allegations, not determinations of guilt.

Section 6. Early Voting and Ballot Stabilization

(a) **Purpose.—** Early voting under US-RAPA is intended to protect democratic stability by allowing voters to affirm or withdraw support for a candidate or official when credible evidence of misconduct arises.

(b) **Initiation.—**

1. **Council Recommendation.** The Council may recommend early voting only upon a three-quarters (3/4) vote of its full membership and after an independent investigation conducted by the appropriate Inspector General or a Special Counsel appointed by the Attorney General. The independent investigation shall assess the allegations, gather evidence, and issue a report to the Council.
2. **Petition by Citizens.** Qualified electors may petition for early voting. A petition must meet the same threshold specified for People’s Activation and must present prima facie evidence of misconduct or incapacity. Upon verification, the Council shall request an independent investigation as described in paragraph (1). Within 14 days of receiving the investigator’s report, the Council shall vote whether to proceed.

(c) **Ballot Process.—**

1. **Question Format.** Ballots shall present a concise question: “Do you have confidence in [name of candidate/official] to continue to hold or seek the office of [office]?” Voters shall choose “Yes” or “No,” and may provide written comments through the secure portal.
2. **Timing.** Early voting must occur no later than forty-five (45) days after the Council’s recommendation or petition validation, and at least thirty (30) days before the scheduled election for that office. Ballots shall be open for a minimum of ten (10) days to ensure broad participation.
3. **Eligibility.** Only qualified electors registered in the relevant jurisdiction may vote. Ballots may be cast by mail, in person at designated polling places, or electronically through the secure portal with verifiable authentication. Voting methods shall comply with all federal and state election security standards.

(d) **Outcome and Effects.—**

1. **Supermajority Threshold and Turnout Requirement.** An official or candidate shall be removed only if (A) at least fifty percent (50 %) of all eligible voters in the relevant jurisdiction participate in the early voting process, and (B) two-thirds (2/3) of the ballots cast are “No.” If turnout does not reach 50 %, or if fewer than two-thirds of votes are “No,” the official or candidate shall remain on the ballot or in office, and no further early voting may be initiated for that office for twelve (12) months.
2. **Effect of Removal.** If the requirements of paragraph (1) are met, the official shall be removed from office immediately. For elected officials, the office shall be filled according to existing succession law or by special election if no statutory successor exists. For candidates, removal shall mean disqualification from appearing on the upcoming ballot.
3. **Judicial Confirmation.** No removal shall take effect until a three-judge panel of the United States Court of Appeals for the District of Columbia Circuit certifies that the early voting process complied with constitutional and statutory requirements. The panel shall issue a decision within seven (7) days after the final ballot is cast. If the panel finds that procedural errors occurred that could have altered the

outcome, it may order a new vote or set aside the removal.

Section 6A. Synthetic and AI-Generated Election Content

(a) Findings.— Artificial intelligence now makes it possible to fabricate realistic audio, images, and video of candidates and officials at scale. Such synthetic media is among the most potent emerging threats to election integrity and to the public’s ability to evaluate the fitness of those who seek or hold office.

(b) Disclosure Requirement.— Any person who distributes synthetic media that depicts a candidate for federal office or a federal official, in connection with a federal election or an early voting process under this Act, shall include a clear and conspicuous disclosure that the content has been artificially generated or materially altered.

(c) Prohibition on Fraudulent Impersonation.— No person shall knowingly distribute synthetic media that falsely depicts a candidate or official saying or doing something the person did not say or do, with the intent to deceive voters and materially affect the outcome of a federal election or early voting process, and without the disclosure required by subsection (b).

(d) First Amendment Safeguards.— This section shall not apply to, and shall create no liability for: (1) satire, parody, or obvious commentary; (2) content that a reasonable person would not mistake for an authentic record; (3) news reporting, analysis, or commentary about synthetic media, including display of the media for those purposes; or (4) artistic, literary, educational, or scientific works. Nothing in this section authorizes prior restraint, mandatory takedown of content, or removal of any work, and this section shall be construed consistently with the protections of section 15(a).

(e) Enforcement.— The Council may issue public corrections identifying synthetic media that violates subsection (b) or (c), and may refer knowing violations of subsection (c) to appropriate authorities for action under existing law. Enforcement under this section shall be subject to the transparency, oversight, and reporting requirements applicable to the Council under this Act.

Section 7. Checks on Government and Judiciary

(a) Executive Accountability.—

1. Presidential Fitness Review. If credible evidence emerges that the President or Vice President has engaged in misconduct, incapacitation, or unlawful power consolidation, the Council may recommend early voting in accordance with section 6. A successful vote of no confidence by the electorate shall trigger the constitutional succession process, and any acting President shall serve until a special election can be held.

2. Vice-Presidential Vacancy. If the Vice President is removed or resigns pursuant to section 6, the President shall nominate a replacement subject to confirmation by a majority vote of both Houses of Congress.

(b) Legislative Accountability.—

1. Congressional Review. When the Council investigates allegations against a Member of Congress, it shall submit its findings to the relevant House Ethics Committee. The committee shall have 30 days to act on the report; failure to act allows the Council to refer the matter to the electorate pursuant to section 6.

2. Special Elections. If a Member of Congress is removed under this Act, the governor of the respective State shall call a special election within 60 days, consistent with Article I, Section 2 of the Constitution.

(c) Judicial Accountability.—

1. Recommendation for Impeachment. US-RAPA does not authorize the removal of Supreme Court Justices by popular vote. If credible evidence of serious misconduct by a Justice arises, the Council may refer the matter to the House Judiciary Committee with a recommendation for impeachment. The Committee shall conduct hearings and, if warranted, report Articles of Impeachment to the full House.

2. Lower Federal Judges. In cases involving judges of lower federal courts, the Council may recommend that the Judicial Conference investigate allegations of misconduct. Following the Conference’s review, the Council may petition Congress for impeachment if the findings support removal. The Council may not remove judges directly.

Section 8. State, Territorial, and Local Participation

(a) State Adoption.—

1. Voluntary Participation. States, territories, and municipalities may adopt local versions of US-RAPA. Adoption shall be voluntary. Federal support—including technical assistance and funding—shall be available equally to all adopting jurisdictions; no preferential treatment or competitive incentives shall be offered.

2. Eligibility for Assistance. States, territories, and municipalities seeking assistance under section 10(a)(4) must enact legislation that mirrors the core principles of this Act, including petition thresholds, council structures, transparency, and data protection requirements. Assistance shall be provided equitably, based on need and readiness, and shall not be conditioned on achieving any special status or recognition.

(b) Federal Recognition.—

(b) Equal Support and Funding.—

1. Equal Support. The Council and the Implementation Task Force shall ensure equitable distribution of support and resources to all states, territories, and municipalities implementing US-RAPA. Federal assistance under this Act shall not favor any region or locality; instead, it shall be allocated based on objective criteria such as population, risk exposure, and implementation readiness.

2. Territorial Inclusion. U.S. territories—including Puerto Rico, Guam, the U.S. Virgin Islands, American Samoa, and the Northern Mariana Islands—shall be eligible for all forms of assistance and participation described in this Act on the same basis as states. The District of Columbia shall likewise be treated as a state for purposes of participation and support.

(c) Support for Non-Participating Jurisdictions.—

1. Unconditional Assistance. Nothing in this Act shall be construed to deny, reduce, or delay federal emergency assistance, disaster relief, or public health support to any state, territory, tribal area, or local jurisdiction that has not adopted a local framework under this Act. The United States shall continue to provide aid and support during emergencies irrespective of participation in US-RAPA.

2. Access to Resources. Non-participating jurisdictions may access training materials, best practices, and technical guidance developed under this Act at no cost and may seek assistance from federal agencies during emergencies as authorized under other federal statutes.

Section 9. Pilot Program

(a) Pilot Jurisdiction Selection.—

1. Selection Process. Within 90 days of enactment, the Implementation Task Force shall solicit expressions of interest from states, territories, and municipalities to serve as pilot jurisdictions for US-RAPA. Selection shall be based on objective criteria including technical readiness, legal framework, public support, and commitment to democratic principles. The Task Force may select one or more pilot jurisdictions to ensure diverse geographic and demographic representation.

2. Cooperative Agreements. The Secretary of Homeland Security, in consultation with the Council and the Implementation Task Force, shall enter into cooperative agreements with selected pilot jurisdictions to implement the program. Agreements shall outline responsibilities, funding, and timelines for developing the secure digital portal, establishing local councils, integrating with election infrastructure, and conducting simulated or real activation exercises.

(b) Objectives.—

1. Testing Activation Pathways. The pilot program shall test government activation, people’s activation, and council activation at the state level, evaluating responsiveness, security, and public engagement.

2. Evaluation of Early Voting. Each pilot jurisdiction shall conduct at least one simulated or real early voting process under this Act within three years of selection and report outcomes, voter participation, and public feedback.

3. Portal Development. The pilot shall develop and launch the first secure digital portal, including authentication protocols, petition verification, publication of council findings, and early voting functionality.

4. Scalability. The program shall assess scalability for national deployment and provide recommendations for improving user experience, security, and accessibility.

(c) Reporting.— The chief executive of each pilot jurisdiction, in coordination with the Council and the Secretary of Homeland Security, shall submit annual reports to Congress on the status of the pilot program, including metrics on usage, public satisfaction, security incidents, and legislative recommendations. Reports shall be made publicly available via the secure portal.

(d) Phased National Rollout.—

1. Post-Pilot Evaluation. Following completion of the pilot program(s) and receipt of the initial evaluation report(s), the Implementation Task Force established under section 10 shall develop a phased schedule for national deployment. Phases shall be structured to allow successive groups of jurisdictions to adopt the framework after meeting technical, legal, and educational readiness benchmarks.

2. Jurisdictional Opt-In and Support. States, territories, and municipalities may opt into the program during the phased rollout upon demonstrating readiness as certified by the Implementation Task Force. Opting jurisdictions shall receive technical assistance, grants, and access to the model legislation described in subsection (e) on an equitable basis, without regional favoritism or competitive prioritization.

3. National Launch. Within five (5) years of enactment, the Implementation Task Force shall submit to Congress a recommendation as to whether the framework is ready for national deployment, including any legislative adjustments needed to ensure uniform adoption.

(e) Model Legislation and Best Practices.—

1. Development. The Implementation Task Force, in consultation with the Council and representatives of state legislatures, shall develop model legislation and best-practice guidelines for states and municipalities seeking to implement local frameworks compatible with this Act.

2. Contents. Model legislation shall include standardized provisions for petition verification, early voting, council composition, data privacy, and oversight mechanisms, while allowing customization to reflect local laws and conditions.

3. Dissemination. Model legislation and best practices shall be published on the secure portal and distributed to state legislatures, governors, and municipal associations. Updates shall be issued as lessons are learned from the pilot and subsequent phases.

Section 10. Implementation and Funding

(a) Authorization of Appropriations.—

1. Council Funding. Funds shall be provided to the Council for staff, operations, investigations, and information technology needs.
2. Digital Portal. The Department of Homeland Security, in consultation with the Council and the National Institute of Standards and Technology, shall develop and maintain the secure digital portal. Funding shall support cybersecurity, user authentication, accessibility for persons with disabilities, multilingual services, and offline alternatives.

(b) Interagency Coordination.—

1. Lead Agency. The Department of Homeland Security shall serve as the lead agency for coordination and implementation of US-RAPA, with assistance from the Department of Justice, the Election Assistance Commission, and other relevant agencies.
2. Information Sharing. Federal agencies shall share relevant information with the Council and with state and local governments to support preparedness and response.
3. Rulemaking. Within 180 days of enactment, the Secretary of Homeland Security, in consultation with the Council, shall promulgate regulations necessary to implement this Act, including standards for the digital portal, petition verification, and election security.

(c) Implementation Task Force and Capacity Building.—

1. Establishment of Task Force. Not later than 180 days after enactment, the President shall establish a temporary US-RAPA Implementation Task Force composed of representatives from the Department of Homeland Security, the Election Assistance Commission, the Office of Personnel Management, the National Governors Association, and independent experts in emergency management, information technology, civic engagement, accessibility, and constitutional law.
2. Duties. The Task Force shall develop and oversee a phased implementation plan; coordinate with state and local governments to build capacity; provide technical assistance and training for portal operation, petition verification, and early voting procedures; issue model legislation and best-practice guidelines to states and municipalities; and ensure that outreach and educational programs reflect diverse linguistic and accessibility needs.
 - Performance Metrics and Benchmarks. The Task Force shall develop and track quantitative and qualitative metrics—such as average petition verification times, participation rates across demographic groups, system uptime, and accessibility outcomes—to assess the effectiveness and equity of US-RAPA implementation. These metrics shall be incorporated into the Task Force’s quarterly progress reports and used to inform continuous improvement.
3. Reporting. The Task Force shall submit quarterly progress reports to Congress and the Council describing implementation milestones, challenges, and recommendations. The Task Force shall dissolve upon determination by Congress that US-RAPA has been fully implemented nationwide.
4. Sunset and Reauthorization. Notwithstanding paragraph (3), the Task Force shall automatically terminate eight (8) years after the date of enactment of this Act unless Congress, by joint resolution, reauthorizes its continuation. Upon sunset, any remaining duties shall be transferred to an appropriate agency designated by Congress.
5. Capacity-Building Grants. There are authorized to be appropriated such sums as necessary for grants to federal, state, and local agencies to hire personnel, upgrade technology, and conduct training necessary to fulfill the duties required by this Act.

Section 11. Public Participation and Transparency

(a) Secure Digital Portal.—

1. Development. The Secretary of Homeland Security shall develop a secure, user-friendly digital portal accessible to citizens, lawful permanent residents, and work-visa residents. The portal shall be compliant with the Americans with Disabilities Act and Section 508 of the Rehabilitation Act.
2. Functions. The portal shall:
 - Authenticate users using multi-factor verification.
 - Allow individuals to file petitions, review Council findings, and monitor the status of activation requests.
 - Enable eligible voters to participate in early voting and referenda.
 - Publish council meeting minutes, advisory reports, and decisions, except where classified information is protected.
 - Provide educational resources on emergency preparedness, civic engagement, and democratic processes.
3. Data Protection and Compliance. The portal shall protect personal data using state-of-the-art encryption, secure storage, and strict access controls. The Secretary of Homeland Security shall ensure that the portal complies with the Federal Information Security Modernization Act (FISMA) and shall obtain a Federal Risk and Authorization Management Program (FedRAMP) authorization. Independent, third-party security audits shall be conducted at least annually, and audit summaries shall be made public.
 - Limited Access. Data collected shall be used solely for the purposes authorized by this Act and shall not be disclosed to law-enforcement agencies, the White House, or any executive-branch entity except pursuant to a judicial warrant or court order. Congress, the Supreme Court,

and the Council may access data only for oversight and statutory purposes.

- Distributed Storage. Personally identifiable information shall be segmented and stored across multiple secure servers or data centres such that no single storage facility contains complete records. Reconstruction of complete datasets shall require authorization from at least two (2) independent custodians designated by the Secretary of Homeland Security and the Council.

- Retention and Deletion. Personally identifiable information shall be retained only as long as necessary to verify petitions, conduct investigations, or administer voting. Individuals may request deletion of their data after statutory retention periods, and the portal shall comply promptly.

- Privacy Oversight. The Privacy and Civil Liberties Oversight Board (PCLOB) and the Chief Privacy Officer of the Department of Homeland Security shall jointly oversee the portal’s data-protection practices. In recognition of the sensitivity of personal data, they shall conduct quarterly privacy impact assessments and compliance audits under the Privacy Act, FISMA and FedRAMP, in addition to immediate audits following any activation or significant system modification. Summaries of all audits and assessments shall be published promptly. PCLOB and DHS’s Privacy Office shall coordinate to ensure both independence and agency accountability and shall provide recommendations to Congress and the Council for any necessary corrective actions.

(b) Public Meetings and Records.—

1. Sunshine Provisions. Except as provided in subsection (2), all Council meetings shall be open to the public and livestreamed via the portal. Meeting agendas shall be posted at least 72 hours in advance.

2. Closed Sessions. Meetings may be closed when discussing classified information, matters affecting national security, or personal privacy concerns. Minutes of closed sessions shall be recorded and declassified as soon as it is consistent with national security.

3. Access to Records. All records of petitions, council findings, advisory reports, and decisions shall be maintained and made available to the public, subject to redactions permitted under the Freedom of Information Act. Records produced pursuant to this Act are public records and shall be processed in accordance with the Freedom of Information Act (FOIA) and applicable classification regulations under Executive Orders and federal law. Nothing in this Act authorizes the creation of new categories of classified information or permits withholding beyond existing statutory authorities. Classified or sensitive material shall be handled consistent with current classification guidelines, and redactions shall be narrowly tailored to protect national security and personal privacy.

(c) Civic Education and Outreach.—

1. Education Programs. The Department of Education, in consultation with civic organizations, shall develop educational materials to inform the public about US-RAPA, emergency preparedness, and the importance of democratic participation.

2. Outreach to Under-represented Communities. The Council shall coordinate with community organizations to ensure diverse participation and to address barriers faced by marginalized groups, including communities of color, people with disabilities, rural residents, and non-native English speakers.

3. Annual Report. Each year the Council shall publish a report on participation metrics, petition activity, early voting outcomes, transparency measures, and recommendations for improving public engagement.

(d) Accessibility and Multilingual Support.—

1. Language Accessibility. All portal content, petitions, ballots, educational materials, and public notices shall be made available in the most common languages spoken in the United States, including Spanish, Mandarin, Vietnamese, Tagalog, Arabic, and other languages as determined by the Secretary of Homeland Security in consultation with the Census Bureau. The Secretary shall provide translation services and plain-language summaries to ensure comprehension.

2. Accessibility for Individuals with Disabilities. The portal and all associated systems shall comply with Section 508 of the Rehabilitation Act and Web Content Accessibility Guidelines (WCAG) 2.1, ensuring compatibility with screen readers, voice recognition, closed captioning, and other adaptive technologies. The Department of Homeland Security shall consult with disability rights organizations to conduct regular usability testing.

3. Offline Alternatives. For individuals without reliable internet access or who prefer not to use the digital portal, the Council and state partners shall provide paper petition forms, telephone hotlines, and in-person submission locations at public libraries, post offices, and government buildings. Voting by mail and early voting at physical polling sites shall remain available under all mechanisms described in this Act. Each offline submission shall be entered into the portal by election officials with safeguards to ensure accuracy and confidentiality.

(e) Breach Notification and Non-Sale of Data.—

1. Breach Notification. In the event of any breach or unauthorized access affecting personally identifiable information in the portal, the Secretary of Homeland Security and the Council shall notify each affected individual, the Privacy and Civil Liberties Oversight Board, and the appropriate committees of Congress as soon as practicable and in no event later than seventy-two (72) hours after the breach is discovered.

2. No Commercial Sale or Transfer. Data collected through the portal shall not be sold, rented, licensed, or otherwise transferred for any commercial, political, or unrelated purpose, and shall be used solely for the purposes authorized by this Act. This requirement supplements the access and disclosure limitations otherwise provided in this section.

Section 12. Severability

If any provision of this Act or the application of such provision to any person or circumstance is held invalid, the remainder of this Act, and the application of the remaining provisions to any person or circumstance, shall not be affected.

Section 13. Effective Date

This Act shall take effect one year after the date of enactment, to allow time for establishment of the Council, development of the secure digital portal, promulgation of regulations, and initiation of the pilot program(s). Sections 2 and 3 shall take effect upon enactment.

Section 14. Oversight and Sunset

(a) Biennial Congressional Review.— Every two (2) years following the effective date of this Act, the Committees on Homeland Security and Governmental Affairs of the Senate and the Committees on Oversight and Reform and Homeland Security of the House of Representatives shall conduct a joint review of US-RAPA’s implementation. The review shall assess the Act’s effectiveness, impacts on civil liberties, use of activation mechanisms, petition activity, and overall public confidence. Committees may recommend amendments to address any deficiencies.

(b) Independent Evaluation and Post-Activation Audits.—

1. Triennial Evaluations. The Government Accountability Office (GAO) shall conduct independent evaluations of the Council, the digital portal, and state-level implementations at least every three (3) years. Evaluations shall examine effectiveness, cost, security, fairness, and potential for abuse. Results shall be submitted to Congress and published via the secure portal.

2. Post-Activation Audits. Following each activation under this Act, the GAO shall perform an audit of the activation within ninety (90) days of its termination. The audit shall assess compliance with statutory requirements, use of funds, impact on civil liberties, and adherence to the scope limitations of section 4. Audit findings shall be submitted to Congress and made public via the secure portal.

(c) Sunset Clause.— This Act shall expire ten (10) years after its effective date unless reauthorized by Congress. At least one year prior to the sunset date, the Council shall submit a comprehensive report to Congress on the Act’s performance and recommendations for reauthorization.

(d) Mission Drift Audits.— As part of the triennial evaluations and post-activation audits, the GAO shall assess whether the Council’s actions and the implementation of US-RAPA remain aligned with the findings and purposes set forth in section 2. The GAO shall identify instances of mission drift, overreach, or unintended consequences, and recommend corrective actions or legislative amendments. Findings shall be reported to Congress and made public via the secure portal.

Section 15. General Protections and Prohibitions

(a) Protection of Constitutional Rights.— Nothing in this Act shall be construed to permit the suspension or limitation of rights guaranteed by the Constitution of the United States. Actions taken pursuant to this Act shall respect freedoms of speech, press, religion, assembly, and petition; the right to due process; and other constitutional protections. Any measure that would otherwise abridge or infringe upon such rights shall be void and unenforceable.

(b) Non-Discrimination and Anti-Targeting.— The Council and all implementing agencies shall ensure that no activation, petition, investigation, or vote under this Act is used to discriminate against, harass, or target any individual or group based on race, color, ethnicity, national origin, religion, sex, sexual orientation, gender identity, disability, or political affiliation. Use of this Act to retaliate against whistleblowers, political opponents, journalists, or advocates is expressly prohibited.

(c) No Expansion of Government Authority.— This Act shall not be used to expand executive, legislative, or judicial power beyond what is necessary to address a declared emergency. Government agencies shall not use the existence of an activation to justify unrelated regulatory actions, surveillance activities, or law enforcement operations. Any such actions shall remain subject to existing statutory and constitutional limits.

(d) Whistleblower Protection.—

1. Protected Disclosures. It shall be protected activity for any federal employee, contractor, member or employee of the Council or the Civilian Review Board, or member of the public to disclose, in good faith, information evidencing a threat to democratic stability, a violation of this Act, fraud, waste, or abuse in activities under this Act, election interference, or an attempt to misuse the authorities of this Act.

2. Protected Channels. Protected disclosures may be made to the Council, the Civilian Review Board established under section 5(c), an Inspector General, the Office of Special Counsel, or the appropriate committees of Congress. Disclosures involving classified information shall be made through lawful channels designed to protect such information.

3. Prohibition on Retaliation. No person shall take or threaten any adverse action — including termination, demotion, harassment, or any action affecting a security clearance — against any person because of a protected disclosure under this subsection. This subsection reinforces and does not limit the prohibition in subsection (b).

4. Remedies. A person subjected to retaliation in violation of this subsection shall be entitled to reinstatement, back pay, compensatory damages, and reasonable attorney’s fees, and may seek relief through existing federal whistleblower-protection procedures.

5. Confidentiality. The identity of a person making a protected disclosure shall be protected to the fullest extent permitted by law, and the Civilian Review Board shall maintain procedures for confidential and anonymous reporting.

Section 16. Non-Preemption and Interplay with Existing Laws

(a) **Supplementary Nature.**— Nothing in this Act shall be construed to supersede, diminish, or conflict with emergency powers conferred by the Constitution or other federal statutes, including but not limited to the Stafford Act, National Emergencies Act, Insurrection Act, or Public Health Service Act. US-RAPA is intended to supplement existing frameworks by providing additional procedural safeguards and citizen-driven mechanisms. In the event of any conflict between this Act and other federal emergency statutes, the provisions affording greater protection of constitutional rights and democratic processes shall control.

(b) **Concurrency with State Law.**— State and local emergency authorities remain intact and may operate concurrently with US-RAPA, provided that they do not undermine the rights or procedures established herein. States adopting parallel frameworks shall integrate them with existing emergency plans and ensure consistency with this Act’s petition thresholds, data protections, and oversight requirements.

(c) **No Impairment of Constitutional Remedies.**— Nothing in this Act shall limit or impair the availability of constitutional remedies, including habeas corpus, due process challenges, or judicial review under Article III. Individuals aggrieved by actions taken pursuant to this Act may seek relief in federal courts without prejudice.

Section 17. International Outreach and Global Democratic Stability

(a) **Establishment of Global Advisory Board.**—

1. **Creation After Five Years.** Five (5) years after the date of enactment of this Act— provided that the US-RAPA framework remains in effect—the President, in consultation with the Secretary of State and the Council, shall convene a Global Democratic Resilience Board (hereafter referred to as the “Global Board”).

2. **Composition.** The Global Board shall consist of representatives from the United States and from democratic nations and regional organizations committed to the principles of constitutional governance, human rights, and the rule of law. Membership shall include:

- Representatives appointed by the President of the United States, including members of the Council and the Department of State;
- Delegates nominated by partner countries through their foreign ministries;
- Observers from international organizations such as the United Nations, Organization of American States, and Council of Europe;
- Non-governmental experts in democracy promotion, conflict resolution, and emergency management.

(b) **Purpose and Functions.**—

1. **Sharing Best Practices.** The Global Board shall facilitate the exchange of knowledge on democratic resilience, emergency preparedness, and citizen-driven accountability mechanisms. It shall document and share lessons learned from US-RAPA implementation and similar initiatives abroad.

2. **Voluntary Assistance.** The Board may, upon request, provide technical assistance, training, and educational materials to other countries seeking to strengthen democratic institutions and emergency preparedness. Participation and assistance shall be strictly voluntary and shall respect the sovereignty and legal frameworks of partner nations.

3. **Research and Collaboration.** The Board shall commission studies and organize conferences on topics such as democratic stability, disinformation, election security, and rapid response to emergencies. It shall coordinate with academic institutions, think tanks, and civil-society organizations worldwide.

(c) **Limitations and Sovereignty.**—

1. **No Extraterritorial Authority.** Nothing in this section authorizes the United States or the Global Board to impose policies, regulations, or obligations on any other nation. Activities of the Global Board shall be advisory and cooperative in nature, consistent with international law and respectful of national sovereignty.

2. **Non-Interference.** The Global Board shall not be used as an instrument of foreign policy coercion, intelligence gathering, or covert intervention. Information sharing and assistance shall be transparent and subject to oversight by Congress.

(d) **Reporting and Sunset.**—

1. **Semiannual Reports.** The Global Board shall submit two (2) reports per year to Congress and make them publicly available. Each report shall summarize activities, partnerships, findings, and recommendations for strengthening democratic stability worldwide.

2. **Sunset.** The Global Board shall terminate twenty (20) years after its inaugural meeting unless Congress, by joint resolution, reauthorizes its continuation. Prior to termination, the Board shall make recommendations regarding future international cooperation on democratic resilience.